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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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PART IV (A) - PROVINCIAL COUNCILS

Provincial Councils Notifications

WESTERN PROVINCE PROVINCIAL COUNCIL

Financial (Amendment) Statute of Western Province, No. 04 of 2014

NOTIFICATION

I, Prasanna Ranatunga, the Chief Minister and Minister of Finance and Planning, Law and Order, Land, Education, Local Government and Provincial Administration, Manpower and Employment, Engineering Services, Information and Trade Affairs of Western Province do hereby notify that since Hon. Governor's assent has received to the Financial (Amendment) Statute of Western Province No. 04 of 2014 on 05.11.2014, the said statute will be enforced with effect from 05.11.2014.

PRASANNA RANATUNGA,
Chief Minister and the Minister of Finance and Planning, Law
and Order, Land, Education, Local Government and Provincial
Administration, Manpower and Employment, Engineering
Services and Information and Trade of the Western Province
Provincial Council.

17th December, 2014,
At Chief Ministry of the Western Provincial Council,
Shrawasthi Mandiraya,
Colombo 07.

FINANCIAL (AMENDMENT) STATUTE OF THE WESTERN PROVINCE, No. 04 OF 2014

A STATUTE TO AMEND THE FINANCIAL STATUTE OF WESTERN PROVINCE No. 06 OF 1990, AMENDED BY
STATUTE NO. 02 OF 2010

Be it enforced as follows by the Provincial Council of the Western Province of Democratic Socialist Republic
of Sri Lanka.

01. This statute shall be named as the Financial (Amendment) Statute of Western Province No. 04
of 2014, and it shall be enforced from the date of assent of Hon. Governor. Amending the
Short Title and
Long Title
02. Instead of the long title of the main statute, the following long title is substituted and amended.

This statute non-complies to certain provisions of the amended Turnover Tax Act No. 69 of
1981, amended Stamp Duty Act No. 43 of 1982, amended Excise Ordinance, amended Prize
Competitions Act No. 37 of 1957, amended Cooperative Societies Act No. 05 of 1972 of the
National State Assembly, amended Municipal Councils Ordinance, amended Urban Councils
Ordinance and Pradeshiya Act No. 15 of 1987.



Substituting New
Sections for
Chapter XXIX
of the main
statute

03. The Chapter number indicated below, Chapter name and Sections therein shall be included immediately preceding to the Section 97 of the main statute and they shall be enforced as Chapter XXIX a, Nation Building Tax and Stamp Duty Sections 97 a and 97 b.

CHAPTER XXIX a

Nation Building Tax and Stamp Duty

Nation Building
Tax to be
credited to the
Provincial Fund

97a. As per provisions of Clause 10 of the Nation Building Tax (Amendment) Act No. 10 of 2011, from the amount equal to 33 1/3 percent from the total amount of money collected as the Nation Building Tax by the Commissioner General of Inland Revenue, certain percentage specified and notified by the Secretary of General Treasury considering the budgetary requirements, shall be credited to the Western Provincial Council Fund.

Stamp Duty of
the Central
Government to
be credited to
the Provincial
Fund

97b. According to the provisions of the second Clause of the Provincial Councils Transfer of Stamp Duty Act No. 13 of 2011 and as per the Stamp Duty (Special Provisions) Act No. 12 of 2006, all the revenue earned as Stamp Duty by the Government shall be credited to the Western Provincial Council Fund by the Commissioner General of Inland Revenue on the basis of collection of such revenue.

In case of
inconsistency
Sinhala text to
prevail

04. In case of any inconsistency between the Sinhala and Tamil texts of this Statute, the Sinhala text shall prevail.